

Fair Work Ombudsman

Fair Work system

Learn who's covered by the Fair Work system and what that means for workplace rights and responsibilities.

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What is the Fair Work system

The [Fair Work system](#) is a national workplace relations system introduced by the Fair Work Act 2009 that provides for the minimum employment standards and regulates on a range of employment and industrial matters. (www.fairwork.gov.au/taxonomy/term/472) was created by the Fair Work Act 2009 and started on 1 July 2009.

The Fair Work system is the name used for the minimum employment laws and agency bodies that were created by the Fair Work Act 2009. It's the [national workplace relations system](#). The national workplace relations system is a collection of legislation that applies to most employees and employers in Australia. It includes the Fair Work Act 2009, the National Employment Standards, registered agreements and awards. (www.fairwork.gov.au/taxonomy/term/406).

For a brief outline of Australia's workplace relations law, visit the [Australia's industrial relations timeline](http://www.fairwork.gov.au/about-us/workplace-laws/fair-work-system/australias-industrial-relations-timeline) (www.fairwork.gov.au/about-us/workplace-laws/fair-work-system/australias-industrial-relations-timeline) page.

Key features of the Fair Work system

The key features of the Fair Work system are:

- the minimum [National Employment Standards](#) (www.fairwork.gov.au/employment-conditions/national-employment-standards)
- [awards](#) (www.fairwork.gov.au/node/327) that apply nationally for specific industries and occupations
- the [National Minimum Wage](#) is a pay rate that applies to employees not covered by an award or registered agreement. Certain award or agreement free employees may have different pay entitlements

[depending on whether they have a reduced work capacity because of disability, if they're under the age of 21 or if they are an apprentice or trainee.](#) (www.fairwork.gov.au/taxonomy/term/404)

- protection from [unfair dismissal](#) (www.fairwork.gov.au/ending-employment/help-with-termination/unfair-dismissal).

The National Employment Standards, awards and the National Minimum Wage make up a safety net of entitlements for [employees](#) (a person that's hired to perform work for a company either on a full-time, part-time or casual basis in exchange for payment. Other known terms: staff and worker.

www.fairwork.gov.au/taxonomy/term/516) covered by the Fair Work system. Other workplace participants in the Fair Work system (such as [regulated workers](#) (a person who is an employee-like worker or a regulated road transport contractor.

www.fairwork.gov.au/taxonomy/term/795) have different rights and entitlements.

There are several key bodies that have roles in the Fair Work system:

- Fair Work Ombudsman (us)
- [Fair Work Commission](https://www.fwc.gov.au/) (<https://www.fwc.gov.au/>)
- Fair Work Division of the [Federal Court](#) (<https://www.fedcourt.gov.au/>) and the [Federal Circuit and Family Court](#) (<https://www.fcfcoa.gov.au/>).

Who is covered by the Fair Work system

The Fair Work system (the national system) covers most Australian workplaces.

Working out who is covered is important because we work with those covered by the national system.

There are some Fair Work system entitlements that will apply to employers and employees who aren't in the national system. For more information read our Library article - [Non-national system employee entitlements in the Fair Work Act 2009](#) (<https://library.fairwork.gov.au/viewer/?krm=K600442>).

Tip: Ask your state or territory body or workplace for help

Employers and employees who aren't covered by the Fair Work system should contact the [relevant state body](#) or their internal human resources department for help.

Check who isn't covered in your state or territory by selecting from the list below:

- [Australian Capital Territory and Northern Territory](#)
- [New South Wales](#)
- [South Australia](#)
- [Queensland](#)
- [Tasmania](#)
- [Victoria](#)
- [Western Australia](#)

Australian Capital Territory and Northern Territory

Generally, all employees and employers in the Australian Capital Territory and Northern Territory are covered by the national system.

New South Wales

State public sector and local government employees aren't covered by the national system and remain under the state system.

South Australia

State public sector and local government employees aren't covered by the national system and remain under the state system.

Queensland

State public sector and local government employees aren't covered by the national system and remain under the state system.

Tasmania

State public sector employees remain under the state system.

Local government employees are covered by the national system.

Victoria

Most employees in Victoria are covered by the national system. This includes state government employees with some exceptions such as senior public servants.

Western Australia

All Western Australian State public sector employers are covered by the state industrial relations system.

The following types of businesses are also covered by the state system:

- sole traders
- partnerships
- other unincorporated entities
- non-trading corporations.

If a business is run by a sole trader in Western Australia and changes to a company, it may move to the national system.

If a business is run by a partnership in Western Australia, the partnership will usually qualify as a national system employer if one of the partners is:

- a company
- engaged in sufficient trading or financial activities.

Local government employers

From 1 January 2023, all Western Australian local government entities are covered by the state system. This is because of a state declaration endorsed by the federal Minister.

Before 1 January 2023, Western Australian local government entities may have been covered by the national or the state system.

To learn more about who's covered by the state system in Western Australia, visit the Department of Local Government, Industry Regulation and Safety: [Which system of employment laws applies](https://www.wa.gov.au/organisation/private-sector-labour-relations/which-system-of-employment-laws-applies) (<https://www.wa.gov.au/organisation/private-sector-labour-relations/which-system-of-employment-laws-applies>).

For information about different business structures, visit [Business Structures - Business.gov.au](https://business.gov.au/planning/business-structures-and-types/business-structures) (<https://business.gov.au/planning/business-structures-and-types/business-structures>).

Before the Fair Work Ombudsman

Name	Dates
Workplace Ombudsman	2007 to 1 July 2009
Office of the Employment Advocate	1997 to 2007

Source reference for page: [Fair Work Act sections 13–14A, 26–30Q](#) (<https://www.legislation.gov.au/C2009A00028/latest/te xt>)

Tools and resources

- [ACT Government](https://www.accesscanberra.act.gov.au/) (<https://www.accesscanberra.act.gov.au/>)
- [Business Victoria](https://business.vic.gov.au/) (<https://business.vic.gov.au/>)
- [Northern Territory Government](https://nt.gov.au/) (<https://nt.gov.au/>)
- [NSW Industrial Relations](https://www.nsw.gov.au/departments-and-agencies/premiers-department/nsw-industrial-relations) (<https://www.nsw.gov.au/departments-and-agencies/premiers-department/nsw-industrial-relations>)
- [Queensland Government](https://www.forgov.qld.gov.au/) (<https://www.forgov.qld.gov.au/>)
- [SafeWork SA](https://www.safework.sa.gov.au/) (<https://www.safework.sa.gov.au/>)
- [Tasmanian State Service Industrial Relations](https://www.dpac.tas.gov.au/divisions/ssmo/awards-and-agreements/state-service-industrial-relations) (<https://www.dpac.tas.gov.au/divisions/ssmo/awards-and-agreements/state-service-industrial-relations>)
- [WA Private Sector Labour Relations](https://www.wa.gov.au/organisation/private-sector-labour-relations/private-sector-labour-relations) (<https://www.wa.gov.au/organisation/private-sector-labour-relations/private-sector-labour-relations>)

- [Library \(www.fairwork.gov.au/tools-and-resources/library\)](http://www.fairwork.gov.au/tools-and-resources/library)

Related information

- [Australia's industrial relations timeline \(www.fairwork.gov.au/about-us/workplace-](http://www.fairwork.gov.au/about-us/workplace-laws/fair-work-system/australias-industrial-relations-timeline)

[laws/fair-work-system/australias-industrial-relations-timeline\)](http://www.fairwork.gov.au/about-us/workplace-laws/fair-work-system/australias-industrial-relations-timeline)

- [Compliance and enforcement \(www.fairwork.gov.au/about-us/compliance-and-enforcement\)](http://www.fairwork.gov.au/about-us/compliance-and-enforcement)
- [Fair Work Commission \(https://www.fwc.gov.au/\)](https://www.fwc.gov.au/)
- [Federal Court of Australia \(https://www.fedcourt.gov.au/\)](https://www.fedcourt.gov.au/)

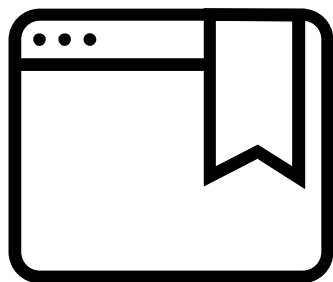
The Fair Work Ombudsman acknowledges the Traditional Custodians of Country throughout Australia and their continuing connection to land, waters, skies and communities. We pay our respects to them, their Cultures, and Elders past and present.



Did you find what you were looking for?

Thank you for your feedback. If you would like to tell us more about the information you've found today you can complete our [feedback form \(https://services.fairwork.gov.au/feedback/submit-a-feedback\)](https://services.fairwork.gov.au/feedback/submit-a-feedback).

Please note that comments aren't monitored for personal information or workplace complaints. If you have a question or concern about your job, entitlements or obligations, please [Contact us \(www.fairwork.gov.au/about-us/contact-us\)](http://www.fairwork.gov.au/about-us/contact-us).



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Contact us

Fair Work Online: www.fairwork.gov.au
Fair Work Infoline: 13 13 94

Need language help?

Contacting the Translating and Interpreting Service (TIS) on 13 14 50

Hearing & speech assistance

Call through the National Relay Service (NRS):

For TTY: 13 36 77. Ask for the Fair Work Infoline 13 13 94

Speak & Listen: 1300 555 727. Ask for the Fair Work Infoline 13 13 94